



CHAPTER xix.

An Act to provide for the dissolution of the commissioners elected under the Cromer Protection Acts 1845 and 1899 and for the transfer of the pier and other property and the powers and obligations of the said commissioners to the urban district council of Cromer to confer further powers on the Council in regard to their pier undertaking lands and other matters to make further and better provision for the improvement health and local government of their district and for other purposes.

[13th July 1948.]

WHEREAS the urban district of Cromer (in this Act referred to as "the district") is under the government of the urban district council of Cromer (in this Act referred to as "the Council"):

And whereas by the Cromer Protection Act 1845 (herein- 8 & 9 Vict.
after called "the Act of 1845") provision was made for the c. xx.
constitution of a body of commissioners (hereinafter called
"the commissioners") for executing the purposes of that
Act and for conferring upon the commissioners powers for the
acquisition of lands and the construction of sea-walls a jetty
promenades and works of sea defence at the town or parish
of Cromer in the county of Norfolk the control of certain then
existing sea-walls and works of sea defence the borrowing of
money and the levying of rates and for other purposes:

And whereas by the Cromer Protection Act 1899 (herein- 62 & 63 Vict.
after called "the Act of 1899") new provisions were enacted c. ccxl.
for the alteration of the constitution of the said body of com-
missioners and the provisions regulating the election of the
commissioners and for the incorporation of the commissioners

and for conferring upon them powers for authorising the acquisition of land and the borrowing of money by the commissioners and the construction by them of a sea-wall or embankment and promenade and a pier and otherwise for extending and amending their powers:

And whereas it is expedient that the commissioners should be dissolved and that the sea-wall promenade and pier constructed under the powers of the Act of 1899 and the other property and the rights powers liabilities and obligations of the commissioners should be transferred to the Council and that such provisions as are in this Act contained, should be made with respect to matters consequential on such dissolution and transfer including the repeal of the commissioners' Acts:

And whereas the commissioners have borrowed on mortgage sums amounting in the whole to fifty-nine thousand eight hundred pounds whereof sums amounting in the whole to thirty thousand three hundred and twenty-four pounds are still outstanding and are repayable by yearly or half-yearly instalments of principal and interest within periods ending as to the sum of twenty-two thousand one hundred and ninety-three pounds in the year one thousand nine hundred and sixty as to the sum of one thousand seven hundred and ninety-eight pounds in the year one thousand nine hundred and sixty-four and as to the sum of six thousand three hundred and thirty-three pounds in the year one thousand nine hundred and sixty-six:

And whereas in the month of July one thousand nine hundred and forty the War Department made an opening in the pier thereby severing the portion of the pier seaward of the opening from the remainder of the pier and after the termination of the war the War Department paid the commissioners the sum of ten thousand pounds as compensation for the damage thereby done to the pier and the Minister of Health undertook to reimburse the commissioners the reasonable and necessary cost of the approved works of repair of the damage to the pier arising out of its requisition by the War Department over and above the sum received from the War Department and has agreed that this undertaking will pass to the Council on the transfer of the powers of the commissioners to the Council under this Act:

And whereas it is expedient that further and better provision should be made for the health good government and improvement of the district and that the powers of the Council in regard thereto should be enlarged as in this Act provided:

And whereas it is expedient that the provisions in regard to the finances of the Council which are contained in this Act should be made:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of sections 253 254 and 255 of the Local Government Act 1933 have been observed:

23 & 24 Geo. 5.
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the Cromer Urban District Short title.
Council Act 1948.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

Part I.—Preliminary.

Part II.—Dissolution of commissioners and transfer of their property powers and obligations.

Part III.—Pier.

Part IV.—Streets and buildings.

Part V.—Sewers drains &c.

Part VI.—Infectious disease and sanitary provisions.

Part VII.—Human food.

Part VIII.—Parks &c.

Part IX.—Lands.

Part X.—Financial provisions.

Part XI.—Miscellaneous.

Part XII.—General.

3. The following Acts (so far as the same are applicable for Incorporation the purposes and are not inconsistent with the provisions of of Acts.
this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts except sections 127 to 132 8 & 9 Vict.
of the Lands Clauses Consolidation Act 1845 and c. 18.
except the provisions with respect to the purchase
and taking of lands otherwise than by agreement:

PART I.

—cont.

10 & 11 Vict.
c. 27.

- (2) The Harbours Docks and Piers Clauses Act 1847 except the provisions thereof with respect to the construction of the harbour dock or pier and except sections 16 to 19 25 26 and 77:

Provided that—

(a) in the application to this Act of the said Act of 1847 the word “ vessel ” shall include a seaplane on the surface of the water;

(b) nothing in the said Act of 1847 shall in any circumstances require or authorise the pier-master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane:

- (3) In construing the Lands Clauses Acts for the purposes of this section this Act shall be deemed to be the Special Act and the Council shall be deemed to be the promoters of the undertaking and the word “ land ” shall have the meaning assigned to it in this Act.

Interpretation.
26 Geo. 5. &
1 Edw. 8.
c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The district ” means the urban district of Cromer;

“ The Council ” means the urban district council of Cromer;

“ The Act of 1845 ” means the Cromer Protection Act 1845;

“ The Act of 1899 ” means the Cromer Protection Act 1899;

“ The commissioners ” means the Cromer Protection Commissioners incorporated by the Act of 1899;

“ The pier ” means and includes the existing pier as the same exists at the day of transfer or may be reconstructed under the powers of this Act and the land buildings works plant property and conveniences connected therewith or any part thereof as the case may require;

“ The pier undertaking ” means the undertaking of the Council in connection with the pier;

PART I.
—cont.

“ Authorised security ” means any mortgage stock bond or other security which the Council are for the time being authorised to grant create or issue or upon or by means of which the Council are for the time being authorised to raise money;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933.

PART II.

DISSOLUTION OF COMMISSIONERS AND TRANSFER OF THEIR
PROPERTY POWERS AND OBLIGATIONS.

Dissolution of
commissioners
and transfer
of their
property
powers
obligations &c.
to Council.

5.—(1) As from the day of transfer the commissioners shall cease to act and their body shall by virtue of this Act be dissolved and cease to exist.

(2) The sea-walls promenades and pier and all other property and the rights and powers which immediately before the day of transfer belonged to or were vested in the commissioners or any person in trust for them or on their behalf shall as from the day of transfer by virtue of this Act and subject to the provisions thereof be transferred to and vest in the Council.

(3) All liabilities and obligations which immediately before the day of transfer were binding upon the commissioners shall as from the day of transfer by virtue of this Act and subject to the provisions thereof be transferred to and become binding upon the Council.

Actions not
to abate.

6.—(1) If at the day of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the commissioners in relation to any property right privilege debt liability or obligation the same shall not abate or be discontinued or in

“ The day of transfer ” means the first day of October one thousand nine hundred and forty-eight;

“ Seaplane ” includes a flying boat and any other aircraft designed to move on the water;

“ Vessel ” includes a seaplane on the surface of the water;

“ The clerk ” “ the surveyor ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the clerk the surveyor the medical officer of health and any sanitary inspector of the Council;

“ The Minister ” means the Minister of Health except in Part III of this Act in which “ the Minister ” means the Minister of Transport;

“ The Public Health Acts ” means the Public Health Act 38 & 39 Vict. 1875 and the Acts amending and extending the same; c. 55.

“ Land ” includes any interest in land and any easement or right in to or over land;

“ The county council ” means the county council of the administrative county of Norfolk;

“ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not.

“ Child ” means a person under the age of sixteen years;

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938; I & 2 Geo. 6. c. 56.

“ Public service vehicle ” has the same meaning as in the Road Traffic Acts 1930 to 1947;

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council; 38 & 39 Vict. c. 83.

anywise be prejudicially affected by reason of the dissolution of the commissioners but the same may be continued prosecuted and enforced by against or in favour of the Council as and when it might have been continued prosecuted and enforced by against or in favour of the commissioners if this Act had not been passed.

(2) Except as in this Act otherwise expressly provided all agreements conveyances contracts deeds and other instruments entered into or made with or by the commissioners and in force at the day of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Council and may be enforced as fully and effectually as if instead of the commissioners the Council had been a party thereto.

(3) All books and documents which if the dissolution of the commissioners had not taken place would have been evidence in respect of any matter for or against the commissioners shall be admitted in evidence in respect of the same or the like matter for or against the Council.

7. All byelaws and regulations made by the commissioners and in force at the day of transfer shall continue in force until the expiration of one year after that day or until byelaws are made by the Council under section 83 of the Harbours Docks and Piers Clauses Act 1847 whichever event shall first occur and such byelaws and regulations shall have effect after the day of transfer as if the Council were therein mentioned in place of the commissioners. Continuance of byelaws.

8. The Council may themselves or by the clerk or other officer duly authorised in that behalf at any time before the day of transfer inspect and take copies of or extracts from all or any of the minute or other books kept by the commissioners in relation to their undertaking and the commissioners shall at all times afford all reasonable facilities for the purpose. Power to inspect books before transfer.

9. The mortgages granted by the commissioners and the interest thereon shall as from the day of transfer and until discharge be charged on the general rate and the said mortgages shall as from the day of transfer be deemed to have been executed by the Council in exercise of their statutory borrowing powers under the Local Government Act 1933 and trustees executors administrators and all persons legally holding such mortgages in any such representative or fiduciary capacity may continue to hold them. Mortgages of commissioners to be a charge on general rate.

10. The Cromer Protection Acts 1845 and 1899 are hereby repealed as from the day of transfer save and except the provisions of the Act of 1899 set forth in the schedule to this Act Repeal of Acts.

PART II.
—cont.

which shall continue in operation and shall have effect as if the Council were therein mentioned in place of the commissioners.

Compensation
to officers and
servants of
commissioners.

11.—(1) Every officer and servant of the commissioners in office on the nineteenth day of July one thousand nine hundred and forty-seven and on the day of transfer who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss due to abolition of office by determination of his appointment or by diminution or loss of office salary or emoluments and for whose compensation for that loss no other provision is made by any enactment for the time being in force shall be entitled to compensation for that loss from the commissioners.

(2) The provisions in the Fourth Schedule to the Local Government Act 1933 shall have effect with regard to the determination and payment of compensation under this Act to officers and servants of the commissioners.

Maintenance
&c. of
transferred
works.

12. The Council may maintain repair renew and improve the sea-walls or embankments and promenades and groynes transferred to and vested in the Council under this Act and subject to the provisions of this Part of this Act may restore reconstruct alter improve and maintain the pier and in connection therewith may from time to time erect construct and maintain whether temporarily or permanently all necessary or proper subsidiary or auxiliary works apparatus and conveniences.

PART III.

PIER.

Power to erect
pavilions
and other
buildings.

13. The Council may construct and maintain on the pier and may furnish and equip fishing platforms pavilions saloons assembly concert lecture waiting refreshment reading and other rooms automatic machines bicycle stands bandstands shops bazaars kiosks aquaria lavatories baths and sanitary and other conveniences and they may also construct under the pier head and maintain floating swimming baths and may make such reasonable charges as they may determine for the use of such conveniences and for admission to such buildings or places as aforesaid.

Power to
dredge.

14. The Council may deepen dredge scour and excavate from time to time the bed of the sea at or near any part of the pier and may appropriate any sand mud and any other material so dug or excavated and generally use the same for the support and maintenance of the pier or may sell or otherwise dispose thereof:

PART III.

—cont.

Certain fishing
vessels under
stress of
weather
exempt from
rates.

19. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the pier and not breaking bulk while making use thereof be exempt from rates leviable under this Act.

Exemption
of lifeboat
crew.

20. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress, passage and egress to along and from the pier.

Power to close
pier on special
occasions

21.—(1) The Council may on any special occasions but not on more than twelve days in any one year or for more than three days consecutively close the pier against the public and may on such occasions admit any persons to the pier on payment of such special rates of admission not exceeding one shilling for each person as the Council may determine.

(2) On all such occasions the Council shall reserve a sufficient passage along the pier between the landing steps and the shore for any persons landing or embarking at the pier the reserved passage to be open for use by those persons at the ordinary charge and without payment of any special rates so long only as they use the pier as a passage and do not remain upon it.

(3) The special rate charged under this section shall be in lieu of and not in addition to the rate specified in the schedule to this Act and any person paying the special rate shall not be liable to pay any further or other rate or sum for admission to the pier on the day for which the special rate is charged.

(4) During at least two days before the day on which the pier is to be closed the Council shall exhibit conspicuously at the entrance of the pier a notice of their intention to close the pier under this section.

Pass and
family tickets.

22.—(1) The Council may grant pass tickets or family tickets to passengers and promenaders or others for the use of the pier (either inclusive or exclusive of admission to any building or room for the time being thereon) at such rates on such terms and for such periods not exceeding one year as the Council may determine and may issue books containing any

Provided that the powers of the Council under this section shall be exerciseable subject to the provisions of the section of this Act of which the marginal note is "Crown rights" and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands or the Minister on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Council to the Commissioners of Crown Lands or the Minister of royalties rents or sums of money in respect of materials raised from any place below low-water mark and sold by the Council under this section as may be fixed by the Commissioners of Crown Land or the Minister as the case may be.

PART III.
—cont.

15. The Council may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Act and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell and dispose of the same All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the pier undertaking and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Act to which capital is properly applicable.

16. Subject to the provisions of the Air Navigation Acts 1920 and 1936 and any Act amending or extending those Acts or of any order made in pursuance thereof and to the provisions of this Act the Council may demand levy collect and receive in respect of seaplanes using the pier such reasonable rates as may from time to time be approved by the Minister.

Rates on
seaplanes.
10 & 11 Geo. 5.
c. 80.
26 Geo. 5.
& 1 Edw. 8.
c. 44.

17. The Council may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Act but so that no preference be in any case given to any person over any other person using the pier under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act.

Power to vary
exemptions
and compound
for rates.

18. The Council may (so far as the rates specified in the schedule to this Act do not extend) demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Council or in respect of any services rendered by them in connection with the pier.

Rates for
services and
accommoda-
tion not
otherwise
provided for.

PART III.

—cont.

Power to lease
pier or rates.

25.—(1) The Council may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be approved by the Minister lease to any company corporation or person (a) the pier or (b) the right to collect and retain the rates authorised by this Part of this Act.

(2) As from the commencement of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Council by this Act which the Council have or might exercise under this Act and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Act.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister and the provisions of this Act with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Council shall within one month after the date of any lease made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Council from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Act and of this Act as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Council and all moneys received by the Council under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Act.

Power to lease
pavilions &c.

26. The Council may let for hire or lease for any term not exceeding seven years any pavilions rooms shops baths sheds or other buildings or structures separately from any other part of the pier undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they may determine.

Byelaws.

27.—(1) The byelaws which may from time to time be made by the Council in exercise of the power in that behalf conferred on them by section 83 of the Harbours Docks and

number of pass tickets at a reduced rate and day tickets available for one day or part of a day only for any number of admissions on such day or part of a day at a reduced rate but so that no preference be given to any person.

(2) The Council shall have power to prescribe the conditions on which pass tickets and family tickets are issued and the persons by whom such tickets may be used.

(3) A pass ticket shall not be transferable and shall not be used by any person except the person to whom it is granted. A pass ticket or family ticket shall not be used otherwise than in accordance with the conditions on which it is issued or after the period limited for its use.

(4) There shall be printed on every pass ticket and family ticket the terms and conditions upon and subject to which the same is issued.

(5) If any person wilfully and with intent to defraud acts in any way in contravention of the provisions of this section or uses or attempts to use any false or counterfeit ticket he shall for each offence be liable to a penalty not exceeding twenty shillings.

(6) In the event of any pass or family tickets for the use of the pier being granted by arrangement with the proprietors or masters of any vessels engaged in transporting passengers to or from the pier to passengers disembarking or embarking at the pier from or upon any passenger vessel any such arrangement shall be deemed to be an agreement between the Council and such proprietors or masters by way of composition for rates and the provisions of section 32 of the Harbours Docks and Piers Clauses Act 1847 incorporated with this Act shall apply thereto accordingly.

23. The Council may for any of the purposes of this Part of this Act from time to time by agreement purchase or take on lease any lands which they may deem requisite or convenient for such purposes and may for such purposes sell or grant leases or underleases of any such lands: Power to acquire lands by agreement.

24. The Council may with the previous consent in writing of and upon such terms, conditions and restrictions as may be approved by the Minister sell the pier and the purchaser to the extent authorised by his conveyance shall have and may exercise all or any of the powers conferred upon the Council by this Act or which the Council have or might exercise under this Act and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Act. Power to sell pier.

Piers Clauses Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

PART III.
—cont.

(2) Notwithstanding the provisions of the Harbours Docks and Piers Clauses Act 1847 relating to the procedure for the making and confirmation of byelaws by the Council the provisions of subsections (3) to (6) of section 250 and section 252 of the Local Government Act 1933 shall apply to all byelaws except such as relate solely to the Council or their officers and servants to be made by the Council in respect of the pier and in the application of such last-mentioned provisions the Minister shall be the confirming authority:

Provided that the Minister shall consult the Secretary of State for Air before confirming any byelaws which relate to seaplanes.

(3) Confirmation of any such byelaws by the Minister shall be sufficient evidence of compliance with the provisions of this section.

28. Officers of police acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the pier without payment. Officers exempt from rates.

29.—(1) The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets from or over the pier. Life-saving apparatus may be attached to pier.

(2) The Council shall at all times keep at the outer extremity of the pier a sufficient number of lifebuoys and life lines in good order and fit and ready for use.

30.—(1) The Council shall at the outer extremity of the pier below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct. Permanent lights on works.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding twenty shillings.

PART III.

—cont.

Provision
against
danger to
navigation.

31.—(1) In the case of injury to or destruction or decay of the pier or any part thereof the Council shall lay down such buoys exhibit such lights or take such other means of preventing so far as may be a danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding twenty shillings.

Saving for
section 132
of Local
Government
Act 1948.
II & 12 Geo. 6.
c. 26.

32. Nothing in this Part of this Act shall be taken to confer on the Council any power exercisable by them under section 132 of the Local Government Act 1948.

PART IV.

53

STREETS AND BUILDINGS.

Adjustment
of boundaries
of streets.

33.—(1) The Council may enter into and carry into effect agreements with persons having a legal interest in lands adjoining any street for the adjustment of the boundary of any such street and for such purpose may give land including land forming part of the street in exchange for other land. For the purposes of this section the Council shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the district and during such period of one month any four inhabitant householders of the district by themselves or their agent may appeal to a court of summary jurisdiction against the proposals and subsections (2) to (7) of the section of this Act of which the marginal note is "As to appeals" shall apply to any such appeal as if the proposals were a decision of the Council.

(3) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street:

41 & 42 Vict.
c. 76.

Provided that if the Council or any person in whom such site is vested desires that such telegraphic line should be altered the enactments of section 7 of the Telegraph Act 1878

shall thereupon apply in all respects as though the Council or the said person (as the case may be) were undertakers within the meaning of the said Act.

PART IV.
—cont.

(4) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any lands of the Council in any case in which such consent would have been required if this Act had not been passed.

34.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Council for approval the Council may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Council and the respective persons interested in such estate or lands be determined on the application of the Council or any such person by an arbitrator to be appointed by the Minister and the Council may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid:

Adjustment
of boundaries
of estates.

Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Council.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall

PART IV.
—cont.

be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Council may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Council may think reasonable.

Crossings for
horses or
vehicles over
footways.

35.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) in passing to and from such premises the Council may either—

- (a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or
- (b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Council may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Council require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition, and may recover the expenses of so doing from the owner or occupier.

(3) If the Council allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of

PART IV.
—cont.

amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to erection
of retaining
walls.

39.—(1) Before any person shall erect on any land within the district a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street he shall submit to the Council plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as may be approved by the Council.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Council requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy the Council be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) The Council shall consult the county council before approving under this section any plans sections and specifications of a retaining wall to be erected on land abutting on or adjacent to or within twelve feet of a county road.

(4) The provisions of this section shall not extend or apply to any land belonging to or which may hereafter be acquired by any railway undertakers or to any retaining wall erected thereon.

As to
pavement
lights.

40.—(1) It shall be lawful for the owner or occupier of any property with the consent in writing of the Council to construct in any pavement forming part of any street in the district any means (in this section referred to as "pavement lights") for the admission of light or air through such pavement to any room or premises situate under or adjoining the same.

(2) In giving their consent to the construction of any pavement lights the Council may attach thereto such terms and conditions as they may think fit.

that condition shall be liable to a penalty not exceeding five pounds.

PART IV.
—cont.

(4) Notwithstanding the provisions of section 18 of the Public Health Acts Amendment Act 1907 every person ^{7 Edw. 7. c. 53.} desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Council for an estimate of the cost thereof and after having obtained such estimate may deposit with the Council the amount thereof. When such deposit shall have been made the Council shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Council by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Council under this section.

36. For the purpose of preventing danger to pedestrians from traffic the Council may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools public baths public parks recreation grounds playing fields alleyways and ^{Power to place fences near school entrances &c.} posts on the sides of any footways or carriageways of such roads as under section 149 of the Public Health Act 1875 are exercisable by them as respects roads so repairable and the Council may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

37.—(1) In any case in which the forecourt of any premises adjoining a street or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger obstruction or inconvenience to the public the Council may require the owner of the premises well and sufficiently to fence such forecourt from the street. ^{Fencing of forecourts.}

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

38.—(1) If the Council shall by resolution determine that any stall structure or other erection (not being an advertisement as defined in the Town and Country Planning Act 1947) ^{Provision as to forecourts. 10 & 11 Geo. 6. c. 51.} on any forecourt is by reason of its character injurious to the

(3) Any agreements entered into by the Council with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

41. Every person who negligently breaks, throws down or otherwise damages any public lamp or lamp post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Council shall make full compensation to the Council for the damage done and such compensation to an amount not exceeding twenty pounds may (without prejudice to any other right or remedy of the Council) be recovered summarily as a civil debt. Compensation for injuring lamps &c.

42.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway. Window blinds &c.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Council the safety and convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

43.—(1) Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of section 3 of the Public Health (Buildings in Streets) Act 1888 in its application to the district be deemed to be a house or building within the meaning of those words where they first occur in the said section. Provisions as to tents vans &c. 51 & 52 Vict. c. 52.

(2) It shall not be lawful without the written consent of the Council to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access or which is required by law to be left free from obstructions.

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

44.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at As to hoardings and similar structures.

PART IV

—cont.

the nearest boundary of the street shall be erected or brought forward on any land in any street—

- (i) beyond any building line prescribed by the Council in respect of the land under the provisions of any Act; or
- (ii) if there be no such line beyond any line which is enforceable by the Council for buildings under subsection (2) of section 140 of the Housing Act 1936; or
- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Council may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Council shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Council given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may at their own expense take down or remove and if required by the owner or occupier shall re-erect so as not to contravene the provisions of subsection (1) of this section any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not (a) be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date or (b) apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete or (c) apply to

any advertisement as defined in the Town and Country Planning Act 1947.

PART IV.
—cont.

(4) The provisions of this section shall not apply to any wall erected on land belonging to any railway undertakers so long as such land is used by them primarily for railway purposes.

45.—(1) No person shall place or erect in the district any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street unless he has given to the Council notice of his intention so to do accompanied by plans and particulars of the hoarding wall or fence and the Council have approved the placing or erection thereof under this section.

As to erection
of hoardings
&c. at street
corners.

(2) Within one month from the receipt of such a notice from any person the Council may give him notice that they disapprove the placing or erection of the hoarding wall or fence or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the hoarding wall or fence would by obstructing the view of foot passengers or drivers of vehicles constitute a danger to the traffic in the streets upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Council may at any time within the said month give notice that they approve the placing or erection of the hoarding wall or fence in accordance with the plans and particulars submitted to them and if within the said month the Council have not given notice under the last foregoing subsection they shall be deemed for the purpose of this section to have approved the placing or erection of the hoarding wall or fence in accordance with those plans and particulars.

(4) Where the Council have approved the placing or erection of the hoarding wall or fence it shall not be placed or erected otherwise than in accordance with the plans and particulars submitted as aforesaid or if notice has been given under subsection (2) of this section of any conditions or modifications than in accordance with those conditions and with such plans and particulars as modified by the notice.

(5) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Council may remove the hoarding wall or fence so placed or erected

PART IV.
—cont.

and may recover the expense incurred by them in so doing from such person.

(6) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

15 & 16 Geo. 5.
c. 68.

(7) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925.

Food storage
accommoda-
tion to be
provided.

46.—(1) Every house erected after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) Every existing house and every house the erection of which was commenced but not completed before the passing of this Act shall where reasonably practicable be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house which can reasonably be so provided but which is not so provided after one month's notice from the Council requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section the expression "house" includes any part of a building which is occupied or intended to be occupied as a separate dwelling and the conversion of a building into two or more separate dwellings shall be deemed to be the erection of a house.

Power to order
alteration of
chimneys.

47. It shall be lawful for a court of summary jurisdiction upon complaint by the Council in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a washhouse or outbuilding forming part of or in proximity to a house in the district is a nuisance to any of the inhabitants of the district to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as afore-said who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

48.—(1) Every chimney erected in the district after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice in writing given by the Council to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably require having regard to the use of such chimney the position of houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Council may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

Height of chimneys.

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating that Act the Council shall obtain the consent of the Minister of Civil Aviation.

(2) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

49.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 or section 108 of the Factories Act 1937 applies shall where practicable and if required by the Council provide to the reasonable satisfaction of the Council and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed.

Sanitary conveniences for workmen.
1 Edw. 8. & 1 Geo. 6. c. 67.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

50.—(1) The Council may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

Further powers as to future line of street.
15 & 16 Geo. 5. c. 71.

PART IV.
—cont.

(2) The owner may and if so required by the Council shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Council under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Council under this section the Council shall make compensation to any owner lessee or tenant of any such building or erection for any loss or damage sustained by him in consequence of such requirement being complied with.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

No building
allowed
until street
defined.

51.—(1) Where plans and sections of a new street have been deposited with and approved by the Council no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any person to erect the building or any fence nearer to the centre of the street than any posts or other marks by which the width of the street has been defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

No building
to be erected
until street
formed.

52.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Council so to do construct the carriageway of such new street or such part of the new street

as may be required by the Council in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

PART IV.
—cont.

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Council shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under section 150 of the Public Health Act 1875 or under the Private Street Works Act 1892 or under the local Acts for the time being in force in the district. ^{55 & 56 Vict. c. 57.}

(3) Any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

53. The powers conferred upon the Council by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so as to enable them (subject to the provisions of that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall for the purposes of safety be rounded off so as to be coincident with the arc of a circle tangential to the adjacent boundaries of the two streets and having such radius as may be determined by the Council. ^{Rounding of corners at street junctions.}

54.—(1) If in the exercise of the powers conferred by the section of this Act whereof the marginal note is "Rounding of corners at street junctions" (which said section is hereinafter referred to as "the specified section") the Council require an alteration either temporarily or permanently in any telegraphic line belonging to or used by the Postmaster-General the enactments numbered (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration. ^{For protection of Postmaster-General.}

(2) If in consequence of the exercise or intended exercise by the Council of the powers conferred on them by the specified section the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic

PART IV.
—cont.

line belonging to or used by him and placed in any street affected by the exercise or intended exercise by the Council of the said powers the Postmaster-General may himself make such alteration in such telegraphic line as he deems necessary or expedient and the Council shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof:

Provided that—

- (a) before making such alteration the Postmaster-General shall give a notice to the Council containing particulars of the telegraphic line to be altered and of the nature of the alteration he intends to make;
- (b) the Council may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a difference shall be deemed to have arisen and sections 4 and 5 of the Telegraph Act 1878 shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Council is to be carried out.
- (3) Expressions in this section have the same meaning as in the Telegraph Act 1878.

Amendment
of section 17
of Public
Health Acts
Amendment
Act 1907.

55. Section 17 (Power to vary position or direction and to fix beginning and end of new streets) of the Public Health Acts Amendment Act 1907 shall in its application to the district be read and have effect as if subsection (2) of the said section were omitted therefrom.

Planting of
trees in
private streets.

56. The Council when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Council under this section shall be deemed part of the expenses of carrying out the private street works in any such street. Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious

to the owner or occupier of any land or premises adjacent to the said street:

PART IV.
—cont.

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Council shall be deemed to be the undertakers.

57. If—

As to evasion
by owners
of private
street works
expenses.

- (1) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the district conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (2) any expenses of works executed by the Council under the said Act in or in relation to that street are apportioned on such part or portion of that land; and
- (3) the Council are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and
- (4) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Private Street Works Act 1892;

then such expenses or so much thereof as has not been recovered by the Council may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the Private Street Works Act 1892 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

58.—(1) In any street not being a highway repairable by the inhabitants at large the Council may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund:

Urgent repairs
of private
streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds for each one hundred yards of the length of the street.

PART IV.
—cont.

(2) The exercise by the Council of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the district relating to private street works or private improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

Means of
access to
buildings.

59.—(1) At any time within one month after the deposit of the plans of any new building intended or adapted for use as a house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Council may by notice in writing require the provision either before the building is erected or before it is sold let or occupied (as the Council shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets. to

(2) If it appears to the Council to be necessary that the means of communication to be provided under this section shall be in the form of a street the Council may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Council to any person such person shall not begin to erect or proceed with the erection of any building to which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Council has been complied with or until security has been given to the satisfaction of the Council that the notice will be complied with.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Closet
accommoda-
tion in houses
occupied by
more than
one family.

60. Section 44 of the Public Health Act 1936 shall with the necessary modifications apply to a part of a house within the district occupied by a separate family as it applies to the whole of a house.

Restriction on
erection of
stands &c.

61.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days

prior to the commencement of the erection thereof submit to the Council a plan and section thereof and shall comply with such conditions as the Council may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

(2) Any person aggrieved by any conditions prescribed by the Council under subsection (1) of this section may appeal in accordance with the section of this Act whereof the marginal note is "As to appeals":

Provided that pending the determination of such appeal twenty or more persons shall not be admitted to such stand or structure unless the conditions prescribed by the Council have been complied with.

(3) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of this section shall not apply to any stand or structure erected by a person who is the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(5) Nothing in this section shall render lawful the erection of any stand or structure which would not have been lawful apart from the provisions of this section.

62.—(1) In this section—

As to neglected sites.

"neglected site" means the site of a demolished building in the district which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood;

"owner" in relation to a neglected site means a person other than a mortgagee not in possession who is for the time being entitled to dispose of the fee simple of the neglected site whether in possession or in reversion and includes also a person holding or entitled to the rents and profits of the neglected site under a lease or agreement the unexpired term whereof exceeds three years.

(2) A court of summary jurisdiction on complaint by the Council may order the owner of any neglected site to remove any rubbish resulting from the demolition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Council at any time after the expiration of such time may enter upon the neglected site and execute the order.

PART IV.
—cont.

(4) All expenses incurred by the Council under subsection (3) of this section in relation to a neglected site may be recovered by the Council from the owner of the neglected site and if the amount does not exceed twenty pounds in a summary manner.

Undertakings
to bind
successive
owners.

63.—(1) Every undertaking or agreement under seal expressed to be made in pursuance of this section and given by or to the Council to or by the owner of any legal estate in land or property on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Council and such owner or his successor in title or person claiming through or under him shall be entitled to require from the Council a copy of such undertaking or agreement.

15. & 16 Geo. 5.
c. 22.

(2) Any such undertaking or agreement of such owner shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any such undertaking or agreement of such owner shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

Saving for
railways.

64. Nothing contained in the sections in this Part of this Act of which the marginal notes are "Height of chimneys" and "Urgent repairs of private streets" shall extend or apply to any building (not being a house or building used as offices other than a building so used which forms part of a railway station) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway undertakers in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by such undertakers with the authority of Parliament so long as any such building railway work or land is used or held primarily for railway purposes.

Saving for
county
council.

65. The powers of the Council under the sections of this Act of which the marginal notes are—

"Adjustment of boundaries of streets";

"Crossings for horses or vehicles over footways";

"As to pavement lights"; and

"As to erection of hoardings &c. at street corners";

shall not be exercised by the Council in respect of a county road except with the consent in writing of the county council.

PART V.

SEWERS DRAINS &C.

66. For the purpose of facilitating the disposal of surface water and sewage the powers of the Council under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the district to provide separate sewers for the reception of surface water and of sewage respectively.

Separate
sewers for
sewage and
surface water.

67.—(1) The powers of the Council under section 21 of the Public Health Act 1925 shall extend to authorise them to require the execution and maintenance of such works as may be necessary to convey surface water from premises to which that section applies to some drain sewer or water-course or the disposal of such surface water in such other manner as the Council may require.

Water from
buildings &c.
to be conveyed
to sewers.

(2) It shall be the duty of all owners of land or premises to provide lay and keep in repair such gutters drains channels and other works as may be requisite for complying with section 21 of the Public Health Act 1925 as amended by this section and for the purpose of laying and repairing the same the owner of any land or premises may take up so much of any street as may be requisite and such gutters drains channels and other works shall be laid and thereafter kept in good repair and condition and the street shall be reinstated under the direction in the case of a county road of the surveyor of the county council and in the case of any other road of the surveyor and all damage occasioned to the street shall be made good by such owner to the satisfaction of the surveyor of the county council or of the surveyor as the case may be.

(3) In the event of default on the part of the owner of any land or premises to comply with the provisions of subsection (2) of this section the Council may execute any necessary work and recover the cost of so doing from such owner.

68. Section 81 of the Public Health Act 1936 shall extend to empower the Council to make byelaws for preventing slop water from any house or premises from being discharged or thrown or suffered to be discharged or thrown or to pass into any street gully in the district.

Byelaws as
to throwing
slop water
into street
gullies.

69.—(1) Where the Council resolve to construct a sewer in a street or part of a street within the district repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Council increase the value of premises fronting adjoining or abutting on such street or

Apportion-
ment to
frontagers of
expenses of
sewer
constructed
under public
highway.

PART V.
—cont.

part of a street then subject to the provisions of the section of this Act whereof the marginal note is "Provisions applicable to the last two preceding sections" the expenses incurred by the Council in constructing the sewer so far as they do not exceed the sum authorised by that section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the district but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

Apportionment to frontagers of expenses of construction of sewer before land became a street.

70.—(1) Where the Council have incurred expenses in constructing after the passing of this Act a length of sewer in or under land within the district and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer or to such part thereof as was constructed in on or over such land as aforesaid.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

Provisions applicable to the last two preceding sections.

71.—(1) The sum apportionable under either of the two last preceding sections of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the district

multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

PART V.
—cont.

(2) As soon as the apportionment has been made the Council shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the resolution became operative or the street was laid out (as the case may be) the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

For the purposes of this subsection—

(a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;

(b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say):—

(i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) to such a distance that the part of that wall remaining (if any) is less than half the previous height of the building (the height being measured from the ground level to the highest point of the building);

PART V.
—cont.

(ii) the conversion into a house of any building not originally constructed for human habitation;

(iii) the conversion of any premises into a factory workshop shop or place of public resort; and

(iv) any extension by reason whereof the area occupied by the site of a building will (with any previous extension made since the date in question) be increased by an area equal to more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date.

(5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) Where such a resolution as is mentioned in the section of this Act whereof the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(8) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Council or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(9) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Council from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

72. If on a complaint by the Council to a court of summary jurisdiction it is proved to the satisfaction of the court—

PART V.
—cont.

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" or as the case may be of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of construction of sewer before land became a street"; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said sections of this Act;

As to evasion
by owners of
sewerage
expenses.

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under either of the said sections of this Act of which the marginal notes are "Apportionment to frontagers of expenses of sewer constructed under public highway" and "Apportionment to frontagers of expenses of construction of sewer before land became a street" may be recovered and is charged on the premises under the said last preceding section of this Act.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

73.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information
to be furnished
in case of
notifiable
disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

PART VI.

—cont.

Parents &c.
to notify
certain
diseases.

74.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school in the district who is aware of or has reason to suspect the occurrence of any disease to which this section applies in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) For the purpose of this section the expression " school " shall include a Sunday school.

Restrictions
on attendance
at schools and
places of
assembly.

75.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

- (a) who is or has been attending any school or any part thereof which for the time being is closed by order of the local education authority or of any committee or body to whom powers of that authority are delegated with the view of preventing the spread of a disease to which this section applies; or
- (b) who is suffering from a disease to which this section applies; or
- (c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon

application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) In this section the expression " day school " means a school (not being a school maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

76.—(1) If the Council or any committee of the Council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

Power to close schools and exclude children from entertainments.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(4) In this section the expression " day school " means a school (not being a school maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

77. If any person at the request of the Council or the medical officer stop his employment for the purpose of preventing the spread of a notifiable disease the Council may make compensation to him for any loss occasioned by reason of such stoppage.

Compensation to persons for ceasing employment to prevent spread of disease.

PART VI.

—cont.

Entry into
premises in
case of disease.

78.—(1) If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

Provided that the medical officer shall not under the powers of this section—

- (a) enter any premises except between the hours of seven in the morning and ten in the evening; or
- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

(2) Any person who obstructs the medical officer in the exercise of his power under this section shall in addition to any other punishment to which he may be subject be liable to a penalty not exceeding five pounds.

As to defective
drains &c.

79.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil pipe is stopped up the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Council may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier summarily as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Council was reasonable and whether the expenses incurred by the Council in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

Vacation
of filthy
premises
during
cleansing.

80.—(1) (a) If the owner of any house or premises occupied therewith within the district represents to the Council that the occupier of such house or premises habitually maintains the same in a filthy condition any officer of the Council duly authorised in that behalf may enter upon such house or premises and inspect the same and if the Council or a committee of the Council are satisfied of the truth of the representation of such owner the occupier shall be liable on the

complaint of the medical officer to a court of summary jurisdiction to be ordered to vacate the house or premises for such time to be specified in the order, as may be reasonably required for remedying the condition of the house or premises by cleansing disinfecting or whitewashing or taking such other steps as may be necessary for such purpose.

PART VI.
—cont.

(b) Any order made under this section may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

42 & 43 Vict.
c. 49.

(2) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed not to apply to a house or premises by reason only of the fact that such house or premises have been vacated in compliance with an order made under this section.

(3) Any expenses incurred by the Council under this section and not paid by the occupier shall be recoverable from the owner of the house or premises.

81. The Council may make byelaws for securing the proper ventilation and lighting of any existing stable used for the accommodation of horses (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions (a) in or about or arising out of any such stable or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

Byelaws as
to stables.

82.—(1) No dealer shall sell or expose for sale any second-hand furniture mattress bed-linen clothing or similar articles if the same are to his knowledge infested with bed bugs lice or fleas or if by taking reasonable precautions he could have known the same to be so infested.

Prohibition
on sale of
verminous
furniture
or clothing.

(2) Any dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) In this section the expression "dealer" means any person (other than a pawnbroker) who trades in secondhand furniture mattresses bed-linen clothing or similar articles for reward.

PART VII.

HUMAN FOOD.

83.—(1) As from the commencement of this section the following provisions shall have effect in the district:—

Registration
of hawkers
of food.

(a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale

PART VII.
—cont.

any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Council; 1s

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Council may refuse to register any person or premises under this section or (after giving one month's notice in writing to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

(i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food;

(ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Council shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Council should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Council refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Council appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the district in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Council shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II of that Act or under regulations made thereunder.

(8) The provisions of this section shall not apply to any premises used as a cinematograph theatre or to any person in respect of the sale or offer or exposure for sale of any food in any such premises.

(9) In this section the expression " food " does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

84.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the district in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Council may request such person to stop his employment and on such request being made the Council may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to prohibit persons in advanced state of tuberculosis from selling &c. food.

(2) If any such person shall fail to comply with such request the Council may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Council to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

PART VII.

—cont.

Precautions
against
contamination
of food.

85.—(1) The occupier of any shop cellar passage or other space forming the whole or part of a building being a shop cellar passage or other space in which food (other than (a) milk (b) meat to which the Public Health (Meat) Regulations 1924 apply and (c) food which is packed in tins or other strongly constructed and impervious cases) is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall take all such steps as may be reasonably necessary to guard against the contamination of such food by flies and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

PART VIII.

PARKS &c.

Boating pools.

86.—(1) Subject to the provisions of this Act the Council may in any park recreation ground or open space belonging to them construct and maintain boating pools together with such buildings works appliances and conveniences as may be necessary or proper in connection therewith.

(2) The Council may make such reasonable charges as they may think fit for the admission to and use of any boating pools by this Act authorised to be constructed or any part thereof or any buildings works appliances or conveniences provided in connection therewith and the Council may if they think fit let any such buildings works appliances and conveniences.

53 & 54 Vict.
c. 59.

(3) The provisions of subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall apply as if a boating pool were a lake or piece of water in a park or pleasure ground provided by the Council.

(4) The Council may make byelaws for regulating the use of any such boating pool and works appliances and conveniences in connection therewith.

Charges for
and letting
of parks &c.
for games.

87. When any portion of any park or place of public resort or recreation is set apart by the Council for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Council may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Council may think fit:

Provided that nothing in this section shall empower the Council to permit at one and the same time the exclusive use of

more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks and places.

PART VIII.
—cont.

88.—(1) The provisions of section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 shall extend to enable the Council from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating to the utilisation for parking places of land not forming part of a street shall mutatis mutandis apply and have effect for the purposes of this subsection.

As to use
of parts of
recreation
grounds for
parking places.
25 & 26 Geo. 5.
c. 47.

(2) The provisions of section 90 of the Road Traffic Act 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section.

20 & 21 Geo. 5.
c. 43.

89. No power conferred upon the Council by the preceding sections of this Part of this Act shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Council without an order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

Saving for
trusts
covenants &c.
in conveyances
and leases.

90. The Council may—

Establishment
of golf courses.

(1) upon any lands already acquired by the Council and used for the purpose of a golf course or acquired or appropriated after the passing of this Act for that purpose form construct alter maintain regulate manage and use golf courses with all proper and convenient houses pavilions works buildings and conveniences;

(2) make charges for the use of any of their golf courses or of any part thereof and of any buildings conveniences or apparatus provided in connection therewith;

(3) permit the use by any club or other body or persons of any of their golf courses lands buildings con-

PART VIII.
—cont.

conveniences or apparatus aforesaid subject to such charges and conditions as the Council may think fit;

- (4) let on lease or otherwise to any club company body or persons any of their golf courses or any part thereof and the lands houses pavilions works buildings and conveniences as aforesaid for such consideration and upon such terms and conditions as the Council may think fit;
- (5) (a) provide and sell and may enter into any agreement or arrangement with any person for the provision and sale at any such golf course or in any such house pavilion or building as aforesaid of refreshments of all kinds subject to the provisions of all Acts relating thereto and may also upon such terms and conditions and for such periods as they may think fit grant to any person the right so to provide and sell refreshments;
(b) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco for the purposes of this subsection;
- (6) make and enforce byelaws for regulating the use of their golf courses whether within or without the district and the conduct of persons using the same or resorting thereto;
- (7) employ officers and servants in connection with and for the purposes of the powers aforesaid.

Removal of
sand &c. from
seashore.

91.—(1) Any person who at any time digs carries away or removes any sand marl gravel shingle rock soil or other material from any portion of the seashore or beach above or below high-water mark for the time being owned by or leased to the Council or from any sea defence work or embankment esplanade footway or carriageway vested in the Council upon which such sand marl gravel shingle rock soil or other material has been thrown by the sea within or fronting on the district without having first obtained the licence in writing of the Council or who having obtained such licence digs carries away or removes any sand marl gravel shingle rock soil or other material from any part of the seashore or beach as aforesaid or from any sea defence work or embankment esplanade footway or carriageway as aforesaid in any quantity or manner other than the part quantity or manner permitted by such licence shall for every such offence be liable to a penalty not exceeding twenty pounds.

(2) The Council shall not grant any licence as aforesaid which shall contravene any covenant or condition subject

to which a gift conveyance or lease of any portion of the seashore or beach has been accepted or made without the consent of the donor grantor lessor or other person or persons entitled in law to the benefit of such covenant or condition.

PART VIII.
—cont.

92.—(1) The Council for securing safety in navigation or for the prevention of noise or of danger obstruction or annoyance to persons boating or bathing or using the beach and foreshore for either of those purposes or otherwise may make byelaws—

Byelaws as
to boats.

- (a) requiring the fitting of efficient silencers on boats propelled by internal combustion engines;
- (b) prohibiting regulating or controlling the keeping or landing of boats on such parts of the beach and foreshore as shall be specified in such byelaws;
- (c) requiring boats of any specified class or description to be kept on such parts of the beach and foreshore as may be specified in such byelaws.

(2) The Council may charge for any licence or permission granted by them to keep a boat (other than a speed boat or an amphibious vehicle) on any part of the beach or foreshore owned by or leased to them such sum (not exceeding one pound for each such licence or permission) as they may think fit and for a speed boat or an amphibious vehicle such sum not exceeding twenty-five pounds as they think fit and such sums may be recovered summarily as a civil debt if the amount does not exceed twenty pounds.

(3) No byelaw made under this section shall affect any right or privilege of owners of boats engaged in the fishing industry which may exist at the time of the making of such byelaw and no byelaw made under paragraph (a) of sub-section (1) of this section shall apply to any boat (not being a boat required to be licensed by the Council) which is ordinarily kept outside the district.

93.—(1) The powers of the Council to make byelaws and impose penalties for the breach thereof with respect to boats (whether required to be licensed by the Council or not) shall extend and be applicable for a distance of three miles seaward from low-water mark of ordinary tides.

As to byelaws
with respect
to boats and
vessels.

(2) All breaches of such byelaws committed within the said distance seaward from low-water mark may be inquired into and dealt with as if they had been committed within the district.

PART IX.

LANDS.

Further
powers for
acquisition
of lands.

94.—(1) The Council notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable that the Council should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district.

(2) When any lands purchased or acquired or taken on lease by the Council under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Council and pending such appropriation all expenses incurred by the Council under this section shall be payable out of the general rate fund and general rate.

Retention and
disposal of
lands.

95.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Council may retain and hold and use ~~for such time as they may think fit~~ or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interest therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any government department to any sale lease appropriation or other disposition of any lands.

of the Council (other than lands acquired under any local Act applying to the Council) in any case in which such consent would have been required if this Act had not been passed.

PART IX.
—cont.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

96. The Council on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation of
easements &c.

97.—(1) The Council may accept a surrender of any lease or letting granted by them of lands acquired under the powers of this Act or any local Act for the time being in force within the district and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of the lands as aforesaid.

Powers with
reference to
leases of lands.

(2) The Council may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Council of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Council in their discretion.

98.—(1) The Council may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Council and not required for the purposes for which they were

Power to
develop lands.

PART IX.
—cont.

acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave flag channel and kerb streets roads and ways on any such lands.

(2) The Council may use or dispose of the building or other materials of any houses or premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

Houses for
persons in
employment
of Council.

99.—(1) The Council may with the consent of the Minister purchase or take on lease houses and other buildings for persons employed by them for the purposes of their several undertakings and may erect fit up maintain and let any such houses and buildings upon any lands for the time being belonging to the Council and (subject to the terms of the lease) upon any lands for the time being leased to the Council for those purposes.

(2) Nothing contained in this section shall empower the Council to create or permit a nuisance.

Proceeds of
sale of surplus
lands.

100.—(1) The Council may (so far as they consider necessary) apply subject to the approval of the Minister any capital moneys received by them on the resale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

(2) Any capital moneys received by the Council on the resale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister.

Purchase of
lands for
exchange.

101. The powers of the Council of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act.

Power to
reinstate
owners of
property.

102. The Council may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be

acquired by the Council under the provisions of any general or local enactment from time to time in force in the district with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Council may pay or receive money for equality of exchange.

PART IX.
—cont.

PART X.

FINANCIAL PROVISIONS.

103.—(1) The Council may from time to time independently of any other borrowing power borrow at interest the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Council may determine not exceeding five years from the passing of this Act.

Power to borrow.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the provisions of Part IX of the Local Government Act 1933 to the borrowing of moneys for the purposes of the pier the Minister of Transport shall be the sanctioning authority.

104. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

As to exercise of borrowing powers.
8 & 9 Geo. 6.
c. 18.

105. If any money is payable to a holder of any authorised security being a minor the receipt of his guardian shall be a sufficient discharge to the Council.

Receipts in case of minors.

106.—(1) The Council shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Council (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

Accounts of undertakings.

(a) the working and establishment expenses and cost of maintenance of the undertaking;

PART X.
—cont.

- (b) the interest on moneys borrowed by the Council for the purposes of or connected with the undertaking or used for those purposes under any enactment;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Council are from time to time authorised to maintain; and
- (f) any money expended on any of the purposes mentioned in the section of this Act of which the marginal note is "Application of revenue of undertakings" other than the purpose mentioned in paragraph (e) of this subsection.

(2) The Council shall show in their accounts relating to any undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Application of
revenue of
undertakings.

107.—(1) If in respect of any year the moneys received by the Council on account of the revenue of any of the undertakings of the Council (including the interest and other annual proceeds received by the Council in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Council out of the general rate fund in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Council may in respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) in reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) in the renewal and the construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any

expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;

- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council.

(2) Any reserve fund which has been provided in respect of any undertaking of the Council and which is in existence on the first day of April one thousand nine hundred and forty-eight shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Council from the undertaking in connection with which it is formed; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking; or
- (c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

108. (a) The Council shall within three months after the Annual date to which their annual accounts relating to the pier under- accounts to taking are made up send a copy to the Minister of Transport. be sent to Minister

(b) The Council shall as from the expiration of that period of Transport. be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with the foregoing provisions.

109.—(1) In this section the expression “ the sea defence Sea defence expenses ” means all expenses incurred from time to time by expenses. the Council on revenue account after the day of transfer for

PART X.
—cont.

or with respect to the maintenance repair renewal or improvement of the sea-walls embankments promenades groynes and other works (excluding the pier) transferred to and vested in the Council under this Act and the interest on and requisite appropriations instalments or sinking fund payments in respect of any moneys borrowed by the Council for the purposes of the maintenance repair renewal or improvement of such works.

(2) From and after the day of transfer the Council shall keep in their books separate accounts in relation to the sea defence expenses.

(3) The total estimated expenditure to be incurred by the Council for the sea defence expenses in any period in respect of which a general rate is made shall be assessed made collected and levied by the Council as part of the general rate (in this section called " sea defence part of the general rate ") and the demand note for any general rate shall show the amount in the pound which is being levied as the sea defence part of such general rate.

15 & 16 Geo. 5.
c. 90.

(4) The sea defence part of the general rate shall be deemed for the purposes of paragraph (a) of subsection (1) of section 22 (Ascertainment of rateable value) of the Rating and Valuation Act 1925 to be equivalent to a " rate charge or assessment made by any commissioners of sewers or other like authority in respect of any drainage wall embankment or other work for the benefit of the hereditament (not being a usual tenant's rate) " and shall be deemed for the purposes of paragraph (b) of that subsection to be an expense necessary to maintain the hereditament in a state to command the rent there referred to.

(5) Subject to any agreement to the contrary the occupier of any rateable property who pays any general rate which includes a sea defence part may deduct the amount of the sea defence part of such general rate actually paid by him from the next or any subsequent rent which may become payable by him in respect of the property for which such rate may have been paid by him.

Recovery of
rate &c. from
persons
removing.

110. If a justice is satisfied on complaint by any officer of the Council duly authorised that any person is quitting or about to quit any premises in the district and has failed to pay on demand any general rate or water rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein

forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the Council and to detain them until the complaint is determined upon the return of the summons.

PART X.
—cont.

111. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the district shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to recovery of rates from tenants and lodgers.

112. The Council may pay out of the general rate fund and general rate—

Subscriptions to local government associations and other expenses.

(a) any reasonable expenses of the attendance of any officers of the Council at conferences or meetings of any association of officers of local authorities formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and the cost of purchasing reports and contributing towards the expense of the proceedings of any such conferences and meetings and the cost of contributing towards the expenses of the proceedings of any conferences or meetings of any association of local authorities formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government;

(b) the reasonable expenses of the Council in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the district.

113.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner) of the Council to whom or to whose legal personal representative a sum not exceeding one hundred pounds is due from the Council on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation or other fund with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Council within such time (not being less than one month after his death) as the Council may in all the circumstances think reasonable then at the expiration of that time the Council may pay such sum to the person or persons entitled to the residuary estate

As to payments due to deceased employees.

PART X.
—cont.15 & 16 Geo. 5.
c. 23.
16 & 17 Geo. 5.
c. 60.

of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in a due course of administration Provided that—

(a) the Council may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Council shall deem it reasonable to allow having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

(b) if the Council receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not pay such sum or the balance thereof in their hands to any person other than to the legal personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) The Council before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require either—

(a) a statutory declaration by the person or one of the persons to whom the Council may pay and propose to pay such sum or any part thereof in accordance with the provisions of subsection (1) of this section to the effect that the total net estate of the deceased employee (including such sum but after the deduction of debts and funeral expenses) does not exceed one hundred pounds; or

(b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

PART XI.

MISCELLANEOUS.

Extension of
section 2 (3)
of Public
Health
(Interments)
Act 1879.
42 & 43 Vict.
c. 31.

114.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Council to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906.

(2) Any such sum unless applied in any other manner duly authorised shall be invested in statutory securities and the interest thereon applied in maintaining the grave or grave space or monument in such manner as the Council think fit.

(3) Any such capital sum and the interest thereon shall be shown separately in the accounts of the Council relating to their cemetery or burial ground but the said interest shall be paid into the fund to which receipts derived from the cemetery are paid.

115.—(1) The Council may erect and maintain on any open space or public place adjoining any highway in the district such weighbridges or weighing machines and offices in connection therewith as they may consider necessary or desirable for the use of the public. Power to erect weighbridges.

(2) The Council may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Council under the provisions of this section.

(4) The Council shall not erect or allow the use of any such weighbridge weighing machine or office so as to obstruct the access to or exit from any station or depot of a railway undertaking.

116.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair. Silencers for internal combustion engines.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Council if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway undertakers and used by them for the purposes of their railway.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Council to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

PART XI.

—cont.

Noise
nuisance.

117.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Public Health Act 1936:

Provided that no complaints shall be made to a justice under section 99 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case:

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means within the meaning of the said Act of preventing or mitigating it have been adopted.

(3) Nothing contained in this section shall apply to any railway undertakers or their servants exercising statutory powers.

(4) Nothing in this section shall affect the power of the county council to make byelaws under section 249 of the Local Government Act 1933.

Prohibition
of touting
hawking &c.
on esplanades
foreshore &c.

118.—(1) No person shall in or on any esplanade parade promenade public walk garden or open space or place of recreation or on the foreshore or beach (above or below high-water mark) within the district importune any person by touting for a hotel lodging-house refreshment-house shop boat garden theatre hackney carriage or any place of amusement or without the consent of the Council hawk sell or offer for sale any article or commodity:

Provided that in the case of the sale of newspapers and periodicals the said consent shall be given to such reasonable number of persons and upon such terms and conditions as the Council may think fit.

(2) Any person offending against the provisions of this section shall be liable for every such offence to a penalty not exceeding twenty shillings.

(3) The provisions of this section shall not prevent the owner of any part of the foreshore or any person with his consent exercising any rights which they could have exercised if this section had not been enacted.

119. Section 94 of the Public Health Acts Amendment Act 1907 shall within the district have effect as if the following were substituted for subsection (3) of that section:—

PART XI.

—cont.

Licensing of
boatmen of
pleasure boats.

“(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed or at any time during the suspension of the licence for the boat or vessel nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel unless such boat or vessel and the boatmen in charge thereof and the navigator are so licensed or at any time during the suspension of the licence for the boat or vessel or boatman or navigator:

Provided that this subsection shall not be deemed to require a person to be licensed as a boatman who takes on hire a pleasure boat or pleasure vessel for purposes other than for gain.”

120. The Council may within the district provide and let land sheds yards and other accommodation and facilities for the storage of boats.

121.—(1) The Council may erect and maintain on any street in the district at suitable stopping places on the routes of public service vehicles or on lands belonging to them shelters and other accommodation for intending passengers on such vehicles and rails for the regulation of queues of persons intending to enter such vehicles.

(2) The Council shall not in pursuance of this section erect any shelter or other accommodation or rail—

(i) so as to cause interference with or to render less convenient the access to or exit from any station or depot belonging to any railway undertakers; or

(ii) in any street or road belonging to or repairable by any railway undertakers; or

(iii) on any bridge carrying any street or road over any railway;

except in each case with the previous consent of the railway undertakers concerned which consent shall not be unreasonably withheld; or

(iv) on any part of the highway without the consent of the highway authority which consent shall not be unreasonably withheld and may be given subject to such reasonable terms and conditions as such highway authority may think fit.

PART XI.
—cont.

(3) Any question which may arise as to whether any consent required by subsection (2) of this section is unreasonably withheld or whether any such terms or conditions are unreasonable shall be referred to and determined by the Minister of Transport.

(4) The Council may make byelaws for the regulation use and management of any such shelter accommodation and rails.

(5) The Council may enter and carry into effect agreements with any person authorised to run public service vehicles within the district for and in relation to the erection maintenance and use of any such shelters and other accommodation and rails and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

Byelaws as to
pleasure fairs.

122.—(1) The Council may from time to time make byelaws—

- (a) for regulating the hours during which pleasure fairs may be open to the public;
- (b) for securing safe and adequate means of ingress and egress to the ground upon which any pleasure fair is held;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section the expression “pleasure fair” means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing:

Provided that the said expression does not include any fair held by statute charter royal licence letters patent or ancient custom.

(3) Before making any byelaws under this section the Council shall give to the Amusement Caterers Association and the Association of Amusement Park Proprietors of Great Britain not less than one month’s notice of the intention of the Council to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Council shall confer with the said associations thereon before they submit them to the Secretary of State for confirmation.

123.—(1) The Council may appoint officers for securing the observance of the byelaws and regulations made by the Council under this Act in respect of the pier.

PART XI.

—cont.

Officers may
be sworn in
as constables.

(2) The Council may procure officers appointed by them—

(a) under subsection (1) of this section; or

(b) for securing the observance of Part VIII (Parks &c.) of this Act and of the provisions of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations to be made thereunder;

to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

(3) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

II & 12 Geo. 5.
c. 31.

124.—(1) The Council may if they think fit grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment:

Power to grant
allowances or
gratuities in
certain cases.

Provided that this section shall not apply—

(a) in the case of a widow to whom a pension is granted in pursuance of section 9 (Allocation of part of superannuation benefits to wife or husband) of the Local Government Superannuation Act 1937; or

I Edw. 8. &
I Geo. 6.
c. 68.

(b) in the case of a widow or dependant entitled in consequence of the death of such employee to compensation under the Workmen's Compensation Act 1925 or to death benefit under the National Insurance (Industrial Injuries) Act 1946.

15 & 16 Geo. 5.
c. 84.
9 & 10 Geo. 6.
c. 62.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

PART XII.

GENERAL.

125. Section 298 of the Public Health Act 1936 shall apply to offences created by or under this Act as if they were offences created by or under that Act except that the said section shall not apply to those created by or under the sections of this Act of which the marginal notes are "Byelaws as to pleasure fairs" and "Prohibition of touting hawking &c. on esplanades foreshore &c."

Restriction
on right to
prosecute.

PART XII.

—cont.

As to appeals.

126.—(1) Any person aggrieved by any requirement refusal or other decision of the Council or of any officer thereof under Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) (other than a requirement under the section of this Act whereof the marginal note is "As to defective drains &c.") or Part VII (Human food) of this Act or the section of this Act whereof the marginal note is "Prohibition of touting hawking &c. on esplanades foreshore &c." may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Council shall not execute such work or take such action; and

(c) subject to the proviso to subsection (2) of the section of this Act whereof the marginal note is "Restriction on erection of stands &c." any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Council effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

127. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be— Byelaws.

(b) in the case of byelaws made under Part III (Pier) of Act of which the marginal notes are "Boating pools" "Establishment of golf courses" "Byelaws as to boats" "Shelters &c. for passengers" and "Byelaws as to pleasure fairs" the Secretary of State;

(c) in all other cases the Minister.

128. When any compensation costs damages or expenses is or are by this Act or by any local Act or Order for the time being in force in the district directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936. Compensation how to be determined.

129. Whenever the Council the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of In executing works for owner Council liable for negligence only.

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—cont.

such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportionment of expenses in case of joint owners.

130. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Damages and charges to be settled by court.

131. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Breach of conditions of consent of Council.

132. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the Act or thing without the required consent.

Application of section 265 of Public Health Act 1875.

133. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local Act or Order for the time being in force applying to the Council as if the same were re-enacted therein.

Inquiries.

134. The Minister and the Minister of Transport may hold such inquiries as they consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

Application of provisions of Public Health Act 1936.

135.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 283 (Notices to be in writing; forms of notices &c.);

- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 293 (Recovery of expenses &c.);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative).

(2) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable to Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) and Part VII (Human food) of this Act (that is to say):—

- Section 277 (Power of councils to require information as to ownership of premises);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 295 (Power of local authority to grant charging orders);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925).

136.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Council of which date public notice shall be given by the Council by advertisement in one or more local newspapers circulating in the district. Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement. Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

Commence-
ment of
certain
provisions
of this Act.

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—cont.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the sections of this Act of which the marginal notes are—

“ Parents &c. to notify certain diseases ”;

“ Restrictions on attendance at schools and places of assembly ”;

“ Registration of hawkers of food.”

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

(a) is carrying on any such business or using any premises for any such purpose; and

(b) has made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is “ As to appeals.”

Saving for
town and
country
planning.

137. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

For protection
of electricity
undertakers.

138. For the protection of the British Electricity Authority and the Eastern Electricity Board (each of whom is in this section referred to as “ the board ”) the following provisions shall unless otherwise agreed in writing between the Council and the board apply and have effect:—

(1) In this section “ apparatus ” means all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to the board:

(2) If it shall be agreed between the Council and the board or (in case of difference) determined by arbitration that in consequence of—

(a) the giving up under the powers of the section of this Act of which the marginal note is “ Adjustment of boundaries of streets ” of land forming part of a street;

45 & 46 Vict.
c. 56.

(b) the construction under the powers of the section of this Act of which the marginal note is " Crossings for horses or vehicles over footways " of a carriage-crossing across the footway of any street or the allowance under the powers of that section of the use as a crossing for any horse or horse-drawn or mechanically propelled vehicle of the footway of any street; or

(c) the addition to the carriageway of a street under the powers of the section of this Act of which the marginal note is " Rounding of corners at street junctions " of any portion of a footway or (in the case of apparatus erected laid or placed on or above the surface of the ground) the addition to the footway of a street under the powers of that section of any portion of a carriageway;

in under upon or over which any apparatus is situate it is reasonably necessary that any apparatus should be removed or diverted or that the position of any apparatus should be altered or that works (hereinafter referred to as " protective works ") for the protection of any apparatus should be executed the board may and (if so required by the Council) shall remove or divert or alter the position of or execute protective works in respect of the apparatus according as and in such manner as may be agreed or determined by arbitration and the Council shall repay to the board the amount of the costs and expenses reasonably incurred by the board in or in connection with such removal diversion or alteration or the execution of such protective works (which costs and expenses are hereinafter referred to as " the said expenses "):

Provided that if in carrying out any such diversion or alteration of position or the execution of protective works—

(a) (i) the board erect lay or place new apparatus in substitution for their existing apparatus; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus or the execution of such protective works; or

(b) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than

PART XII.
—cont.

length) or of greater capacity or apparatus of improved type; or

(ii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which such greater depth is reasonably necessary in order to avoid interference with other underground apparatus works or structures;

the board shall themselves bear (in the case referred to in paragraph (a) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the board resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in paragraph (b) of this proviso) such proportion of the said expenses as represents the amount by which such expenses exceed the cost which would have been incurred if the dimensions (other than length) or the capacity of the apparatus so laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth as the existing apparatus:

Provided also that where the apparatus had been laid or placed in under upon or over the part of the street or footway affected within the period of two years immediately preceding the giving of the relevant notice required by subsection (4) of this section and at the time of the laying or placing of that apparatus the Council had given to the board notice in writing of their intention of exercising the powers necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Council if the said powers are exercised by the Council in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the board:

- (3) Notwithstanding the giving up under the powers of the section of this Act of which the marginal note is "Adjustment of boundaries of streets" of land forming part of a street the board shall (unless the apparatus is removed or diverted under the provisions of subsection (2) of this section or unless new apparatus has been laid in substitution therefor) continue to have the same powers and rights in respect of

such apparatus as if the land in under upon or over which the same is situate had continued to be part of the street:

- (4) The Council shall give to the board not less than twenty-eight days' notice in writing of their intention to exercise any of the powers referred to in subsection (2) of this section with respect to any portion of a street or footway in under upon or over which any apparatus is situate and such notice shall be accompanied by a plan and (in the case of the addition of part of the footway to the carriageway) a section showing the nature and extent of the proposals in so far as they relate to any such portion of a street or footway as aforesaid:
- (5) If within twenty-eight days after the receipt from the Council of any notice under subsection (4) of this section of their intention to exercise any such powers as are referred to in that subsection the board give to the Council notice in writing of their intention (otherwise than by the requirement of the Council) to remove or divert or alter the position of or to execute protective works in respect of any apparatus affected by the exercise of such powers and at the same time deliver to the Council a plan section and particulars of any such diversion or alteration of position or particulars of any such protective works (as the case may be) the Council shall not exercise the powers referred to in the notice given by them as aforesaid until—

(a) it shall have been agreed between the Council and the board or settled by arbitration whether such intended removal diversion or alteration of position of apparatus or the execution of such intended protective works is reasonably necessary; and

(b) the plans sections and particulars of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled:

Provided that if the proposals contained in any notice given to the Council by the board under this subsection and any plans sections or particulars delivered to the Council with such notice are not disapproved by the Council within twenty-eight days after the receipt thereof the said proposals shall be deemed for the purposes of this section to be reasonably necessary and the Council shall be deemed to have approved such plans sections or particulars:

PART XII.

—cont.

- (6) Forthwith after the completion of any such removal or diversion or alteration of position of apparatus or of any such protective works the board shall if reasonably required by the Council fill in the excavation and make good the surface of the ground to the reasonable satisfaction of the Council:
- (7) Nothing in the section of this Act of which the marginal note is "Further powers as to future line of street" shall without the consent of the board apply to or affect any property occupied or used by the board for the purpose of their undertaking. Provided that such consent shall not be unreasonably withheld and any question whether any such consent is unreasonably withheld shall be determined by the Minister of Fuel and Power:
- (8) If any shelter or other accommodation for intending passengers erected by the Council under the powers of the section of this Act of which the marginal note is "Shelters &c. for passengers" be situate in any street over any apparatus of the board laid or placed before the erection of the shelter or other accommodation and the board give to the Council notice in writing of their desire to obtain access to such apparatus the Council shall either remove temporarily the shelter or other accommodation or so much thereof as shall require to be so removed in order to afford such access or (if the Council determine not to remove the shelter or other accommodation or part thereof) bear any additional expense due to the existence of the shelter or other accommodation which may be reasonably incurred by the board in obtaining such access:
- (9) (a) Any difference or dispute which may arise between the Council and the board under this section (other than a difference or dispute under subsection (7) of this section or as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to arbitration;
- (b) In settling any difference or dispute under this section the arbitrator shall have regard to any duties or obligations which the board may be under in respect of any apparatus and may if he thinks fit require the Council to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

139. Where under this Act any dispute or difference is to be referred to arbitration other than a dispute or difference to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the dispute or difference or in default of such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

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—cont.

Application
of Arbitration
Acts 1889
to 1934.

140. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Minister of Transport respectively without the consent in writing of the Commissioners of Crown Lands or the Minister of Transport as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown rights.

141. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council in the first instance out of the general rate fund and general rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose,

Costs of Act.

The SCHEDULE referred to in the foregoing Act.

PROVISIONS OF THE CROMER PROTECTION ACT 1899
SAVED FROM REPEAL.

Power to sell
lands.

41. The commissioners may sell lease and dispose of any lands acquired by them under this Act or under the Act of 1845 and not for the time being required for the purposes thereof:

Provided always that where any such lands have been acquired from the owners of the Cromer Hall estate the same shall before being sold or disposed of under this section be offered by the commissioners for sale to the said owners and sections 129 to 131 of the Lands Clauses Consolidation Act 1845 shall apply to and in relation to such offer of sale as if the same had been an offer of sale made in pursuance of that Act. Provided that such sale shall be at the same price or a proportionate part of the same price as that at which such lands were purchased by the commissioners. Provided also that the commissioners shall not lease any lands above high-water mark for building purposes or permit any buildings to be erected thereon by any lessee.

Charges for
sundry services.

53. The commissioners may demand recover and receive for the use of the pier any sums not exceeding the rates specified in the Fourth Schedule to this Act.

FOURTH SCHEDULE.

RATES FOR USE OF PIER.

	£	s.	d.
For every person who shall use the pier for the purpose of walking for exercise pleasure or any other purpose—			
For each and every time any sum not exceeding ...	0	0	6
For every bath chair (including the driver) taken on the pier			
For each and every time any sum not exceeding ...	0	0	8
For every perambulator (including the person in charge)—			
For each and every time any sum not exceeding ...	0	0	6

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